

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Kerstein	Team: Squad #07	CCRB Case #: 201504625	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 06/05/2015 10:30 PM	Location of Incident: East 72nd Street and Avenue T	18 Mo. SOL 12/5/2016	Precinct: 63
Date/Time CV Reported Mon, 06/08/2015 1:18 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/08/2015 1:18 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Pawel Dabrowski	03056	948841	063 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jordan Lomba	09300	950766	063 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Pawel Dabrowski	Abuse: PO Pawel Dabrowski refused to provide his name to § 87(2)(b) [REDACTED]	A . Unsubstantiated

Case Summary

On June 5, 2015, at approximately 10:30 p.m., § 87(2)(b) and his wife, § 87(2)(b) were walking their dog when PO Jordan Lomba and PO Pawel Dabrowski approached § 87(2)(b) at the intersection of East 72nd Street and Avenue T, in Brooklyn.

PO Dabrowski accused § 87(2)(b) of smoking a marijuana cigarette which § 87(2)(b) denied. After issuing § 87(2)(b) a summons for § 87(2)(b) (NYPD Documents 01), § 87(2)(b) requested PO Dabrowski's name, and he allegedly refused to provide it (**Allegation A**).

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- A Notice of Claim inquiry search was submitted on July 22, 2015, the results are pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by, or involving § 87(2)(b) and § 87(2)(b) (B.R. 02)
- PO Dabrowski has been a member of the service for five years, and has been the subject of four allegations from two previous complaints, one of which was substantiated. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) accurately described PO Dabrowski, and PO Dabrowski acknowledged interacting with § 87(2)(b) § 87(2)(g).

Allegation A – PO Pawel Dabrowski refused to provide his name to § 87(2)(b)

§ 87(2)(b) alleged that when he asked PO Dabrowski for his name, PO Dabrowski said his name was “Officer,” and then slammed his door without saying his last name.

§ 87(2)(b) who was standing next to § 87(2)(b) at the time, stated that PO Dabrowski said his name so low that neither of them could hear what he said it was. § 87(2)(b) stated that § 87(2)(b) then asked PO Lomba for PO Dabrowski's name, but he did not provide it (B.R. 03).

PO Dabrowski stated that he provided his name to § 87(2)(b) when he first approached him, and that § 87(2)(b) never asked him for his name again (See PO Dabrowski's CCRB interview). PO Lomba could not recall if § 87(2)(b) asked for PO Dabrowski's name or whether PO Dabrowski provided his name to § 87(2)(b) (See PO Lomba's CCRB interview).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Pod: 7

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date